

MAKING JUSTICE WORK

Intense media scrutiny helped conviction in these high-profile cases as well



Nitish Katara

Katara, a management graduate, was seeing his classmate Bharati Yadav which her brother Vikas and cousin Vishal, didn't approve of. Nitish was abducted and murdered by them on February 17, 2002, and his battered, mutilated body was found three days later. A number of witnesses repudiated their initial testimony as Vikas was the son of influential criminal-politician D.P. Yadav. Thanks to intense media scrutiny, however, Vikas and Vishal were sentenced to life imprisonment in 2008.



Priyadarshini Mattoo

Mattoo, a 25-year-old law student, was raped and murdered on January 23, 1996, by Santosh Kumar Singh. He was acquitted three years later by a local court which led to a massive public outcry. The CBI challenged the judgement in the Delhi High Court on February 29, 2000. The matter was then dealt expeditiously and the judgement was reached in 42 days. It overturned the original acquittal order and held Singh guilty of murder and rape.



Jessica Lall

On April 29, 1999, Lall was shot dead at Tamarind Court by Manu Sharma, son of a senior Haryana Congress leader, when she refused to serve him a drink. Six years later, a Delhi court acquitted all those charged with Lall's murder. A sting operation showed how the witnesses were pressured to turn hostile. Public anger led to the reopening of the case and Sharma was held guilty. He was sentenced to life imprisonment by the Delhi High Court in 2006.

You can't get away. We will fight until Rathore gets a harsher sentence. **ARADHANA, RUCHIKA'S FRIEND**

Kurukshetra, my parents would get calls that someone has kidnapped me." Her father, a chief engineer with the Haryana Agriculture Marketing Board, was chargesheeted 13 times for alleged corruption and even demoted as superintending engineer.

But never did the family think of withdrawing the case. "We were threatened but we were never intimidated," says Madhu, who was the first person Ruchika confided in after the molestation, having lost her own mother when she was just 12. They are disappointed and yet relieved. Says Aradhana, "A message has been sent out that you might be a top police officer, but you can't get away from your sins. The nation and the media are now with us. But this is not enough. We will

fight until he gets a harsher sentence."

They are examining their options, and as Parkash's lawyer Pankaj Bhardwaj says, they believe it will be possible only thanks to public pressure. "He should have been charged under Section 306 of the IPC for abetment to suicide in which the maximum punishment is 10 years. But the CBI didn't challan him under that section. We will still seek a retrial and ask for a harsher sentence," says Bhardwaj. The Punjab and Haryana High Court dropped Section 306 in 2003 and the CBI said it was investigating only charges under Section 354. "In the absence of adequate support from the agency, the high court rejected the application for abetment to suicide," says Parkash. Aradhana, Reemu to Ruchika, the lone

witness to the molestation, and now settled in Sydney, has been in India for two months with her husband Aman Gupta.

Life has moved on but it hasn't been the same. Her favourite sport, tennis, and so much else died along with Ruchika. "I remember Rathore used to watch us for hours everyday as we played tennis. We respected him as a senior police officer who was heading our tennis organisation. But we could never tell that he looked at us in any way other than as his daughters. He used to chide us for wearing long skirts. "You can't play in long skirts", he would say. We had to fold them. "How could a police officer behave like that?"

It is a question that defies a humane answer. And it is an answer that sends chills down the spine of any parent. ■